

26CHCV00656 26CHCV00656

County: los-angeles

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APPLICATION FOR WRIT OF POSSESSION

Application filed on March 5, 2026. MOVING PARTY: Plaintiff Ally Bank Lease Trust, an association RESPONDING PARTY: Defendant Vazgen Minasyan, an individual NOTICE: OK RELIEF REQUESTED: Issuance of writ of possession. RULING: Granted.

BACKGROUND

On June 22, 2024, Defendant Vazgen Minasyan entered into a written SmartLease Lease Agreement and related assignment documents with Rydell Chrysler Dodge Jeep Ram in connection with the lease of one 2024 Ram 1500, Vehicle Identification No. 1C6SRFLT7RN117119. Defendant was required to pay 48 monthly installments of \$874.40 beginning June 22, 2024. (Caballero Decl., ¶ 5, Ex. A.)

Plaintiff thereafter acquired ownership of the Vehicle, with Vehicle Asset Universal Trust (VAULT) serving as nominee title holder, and a perfected security interest through Ally Bank, as reflected on the Vehicle's Electronic Title Document. (Caballero Decl., ¶ 5, Ex. B.) Defendant defaulted under the Lease when \$747.60 remained unpaid on the payment due January 22, 2025, and Defendant failed to make the regular monthly payments of \$874.40 due thereafter. (Caballero Decl., ¶ 6.) The Lease permits Plaintiff to take immediate possession of the Vehicle upon default. (Caballero Decl., ¶ 5, Ex. A.) Plaintiff demanded return of the Vehicle, which Defendant failed to honor. (Caballero Decl., ¶ 6.) The outstanding balance as of the charge-off date of May 31, 2025 is \$60,623.03. (Caballero Decl., ¶ 6.)

Plaintiff now seeks a writ of possession against Defendant Vazgen Minasyan. No timely response was filed by Defendant. Default was entered against Defendant on May 7, 2026.

LEGAL STANDARD

A plaintiff may apply to the court for a writ of possession upon filing of the complaint in a civil action or at any time thereafter. (Code Civ. Proc., § 512.010(a).)

"[An] application [for a writ of possession] shall be executed under oath and shall include all of the following: (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached. (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention. (3) A particular description of the property and a statement of its value. (4) A

statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there. (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure." (Id., subd. (b).)

A writ of possession may issue if, after hearing, the applicant establishes the probable validity of its claim to possession of the property at issue and posts any undertaking required by Code of Civil Procedure section 515.010. (Code Civ. Proc., § 512.060.)

Whether an applicant's claim is probably valid will depend on the applicable substantive violation for which the plaintiff is pursuing the writ. (See *Englert v. IVAC Corp.* (1979) 92 Cal.App.3d 178, 184.)

DISCUSSION

Plaintiff has met all the statutory requirements.

First, the declaration of Fernando Caballero, Plaintiff's Authorized Representative, declares that on June 22, 2024, Defendant executed a written Lease Agreement and related assignment documents (collectively, the Lease) in connection with the lease of a 2024 Ram 1500 (the Vehicle). The Lease obligated Defendant to pay 48 monthly installments of \$874.40 beginning June 22, 2024. Plaintiff thereafter acquired ownership of the Vehicle, with VAULT serving as nominee title holder, and a perfected security interest through Ally Bank, as reflected on the Vehicle's Electronic Title Document. (Caballero Decl., ¶ 5, Exs. A, B.)

Defendant defaulted when \$747.60 remained unpaid on the payment due January 22, 2025, and Defendant failed to make the regular monthly payments of \$874.40 due thereafter. (Caballero Decl., ¶ 6.) The Lease expressly provides that upon default, Plaintiff may take immediate possession of the Vehicle. (Caballero Decl., ¶ 5, Ex. A.) Accordingly, Plaintiff has demonstrated its ownership and secured interest in the Vehicle and an immediate contractual right to possession upon default.

Second, the record shows that Defendant came into possession of the Vehicle upon delivery and continues to possess it. Despite demand from Plaintiff, Defendant has refused to surrender possession. (Caballero Decl., ¶¶ 6, 8.) These facts establish that Defendant is wrongfully detaining the Vehicle within the meaning of Code of Civil Procedure section 512.010(b)(2).

Third, Plaintiff provided a specific description of the property, "2024 Ram 1500, motor vehicle, Vehicle Identification Number 1C6SRFLT7RN117119," together with a valuation of \$46,400.00. (Caballero Decl., ¶¶ 5, 7, Ex. C; Application, item 4.) Plaintiff also provided information concerning the Vehicle's location, based on its best knowledge and belief, as required by section 512.010(b)(4). (Caballero Decl., ¶ 10.) The Lease identifies 1326 N. Normandie Avenue, No. 3, Los Angeles, California 90027 as Defendant's address and identifies no different garaging address. Plaintiff's records also reflect that Defendant resides at that address and that the Vehicle

is located there. (Caballero Decl., ¶ 10, Ex. A.) The Court therefore finds probable cause to believe the Vehicle is located in a garage or other parking area at that address.

Fourth, Plaintiff declares that the Vehicle has not been taken for tax, assessment, or fine, nor taken under execution against Plaintiff's property. (Caballero Decl., ¶ 9; Application, item 8.)

Under section 512.060, a writ of possession may issue if Plaintiff establishes the "probable validity" of its claim to possession. Plaintiff's showing here meets that standard. The Lease and title documents establish Plaintiff's ownership and secured interest in the Vehicle, Defendant defaulted on his payment obligations, and Plaintiff has demonstrated an immediate right to possession. The record therefore demonstrates that Plaintiff's claim to possession is probably valid.

Under section 515.010(b), no undertaking is required where Defendant has no interest in the property. Caballero states that the Vehicle's average wholesale value is \$46,400.00 and its retail value is \$54,500.00, both of which are less than the \$60,623.03 owed under the Lease. (Caballero Decl., ¶¶ 6-7, Ex. C.) Because Defendant has no remaining interest in the Vehicle, Plaintiff is exempt from posting an undertaking.

If Defendant seeks to retain possession of the Vehicle, Code of Civil Procedure section 515.020, subdivision (a) permits Defendant to file an undertaking. Plaintiff's submitted order proposes an undertaking amount of \$0.00 for Defendant. Because that amount would provide no security for Plaintiff's interest in recovering the Vehicle, the Court exercises its discretion under section 515.020, subdivision (a), to require Defendant to file an undertaking in the amount of \$46,400.00, the value stated in Plaintiff's sworn application.

Plaintiff has met all statutory prerequisites for issuance of a writ of possession under Code of Civil Procedure section 512.010 and has demonstrated the probable validity of its claim under section 512.060.

CONCLUSION

Plaintiff Ally Bank Lease Trust's Application for Writ of Possession is GRANTED.

The Court will sign Plaintiff's proposed order (CD-120) with corrections to the undertaking provisions.